

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BRAZIL

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

The clearest recent proof that a community can win in Brazil came from a bend in the Tapajós River, deep in the Amazon. The government planned **São Luiz do Tapajós**, an eight-thousand-megawatt mega-dam — the first of a cascade of dozens planned for the basin — and it would have flooded **Sawré Muybu**, the ancestral land of the **Munduruku** people. For years the government stalled the official recognition of that land, insisting it wasn't really Indigenous. So the Munduruku did something extraordinary: fed up with the delay, they **walked their own territory and marked out its boundaries themselves** — a self-demarcation — and kept the pressure on alongside their allies. In April 2016 the federal Indigenous agency, **FUNAI**, finally published a report recognising Sawré Muybu as Munduruku land. Within a single day, the environmental agency **IBAMA suspended the dam's licensing**, and that August it **refused the licence outright**. A mega-dam that had looked inevitable was dead — because a people asserted a constitutional right to their land and forced a chain of institutions to honour it.

Tapajós teaches two things about winning here. First, the usual pattern: no single silver bullet, but every lever pressed together — the environmental licensing and its public hearings, the constitutional shield around Indigenous land, prior consultation, the courts, the movement, and national and international attention — until a project becomes legally and politically impossible. Second, something most countries don't have: an **independent Ministério Público**. These are public prosecutors with a constitutional duty to defend the environment and traditional peoples, and they can investigate a project and take it to court on a community's behalf. **You don't always have to sue — sometimes you persuade a prosecutor to sue for you**, and a prosecutor is an independent, publicly funded litigator a company can't outspend or outlast.

But be clear-eyed, because Brazil is also hard. The government has a powerful counter-move — the **suspensão de segurança** — that lets it ask a senior judge to lift an injunction on grounds of harm to the economy or public order; that's how the **Belo Monte** dam got built despite dozens of prosecutors' court wins against it. Licensing approves the great majority of projects. Recognising Indigenous land is slow and bitterly fought. And Brazil is one of the most dangerous countries on Earth to be a land or environmental defender — so protecting people is not an afterthought here; it's part of the strategy. This guide shows you how to win anyway, and where a clean stop isn't realistic, how to win the delay, the conditions, the exposure, and the worn-down proponent that a hard fight often really comes down to.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of permissions, and a chain breaks at its weakest link. In Brazil a major project needs an **environmental licence** (granted in three stages, each a fresh chance to fight); if it touches Indigenous or traditional land it needs to clear a **constitutional shield** and a duty of **prior consultation**; it can be challenged by an **independent prosecutor** and by ordinary citizens in court; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If Indigenous, quilombola, or other traditional land or rights are engaged, you have Brazil's strongest shield** — the constitutional protection of Indigenous land and the right to free, prior, and informed consultation. That's the Tapajós lever.
- **If the licensing is flawed or the consultation was a sham, and you can reach a prosecutor and the courts, the tools genuinely bite.**
- **If the government is set on a strategic project, it's brutally hard** — the *suspensão de segurança* can undo court wins, and a clean stop may not be reachable; aim honestly at delay, conditions, and exposure, and protect your people above all.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the licensing hearings, the constitutional shield, the prosecutor — and **run every front at once**: the documents, the licensing fight, the prosecutor, the courts, the movement, and the national and international story.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental licence**. Who grants it depends on the project: **IBAMA**, the federal agency, licenses projects with national impact, on federal land, crossing state lines, or affecting Indigenous lands; **state environmental agencies** license most projects; municipalities license local ones. Alongside the licensing agency, other bodies weigh in with binding-in-practice opinions — the water regulator, the cultural-heritage body, the conservation-unit managers, and, where Indigenous or traditional land is involved, **FUNAI** and the traditional-peoples authorities. And standing apart from all of them is the **Ministério Público**, which answers not to the government but to the law.

How a Project Moves — and Where You Jump In

Brazilian licensing comes in **three stages, and each is a separate chance to fight**:

The Licença Prévia (LP) — the preliminary licence. This is the big one. It approves the project's *location and concept* and declares it environmentally viable — before any works. For a significantly damaging project, this stage requires the full **EIA** (environmental impact study) and its plain-language public summary, the **RIMA**, and at least one **public hearing (audiência pública)**. *Your opening*: the EIA/RIMA must be publicly available for at least **45 days before the hearing** — get it, read it for flaws, and speak at the hearing. The LP is where a project is stopped most cleanly, because it's where viability is decided.

The Licença de Instalação (LI) — the construction licence. Authorises building. *Your opening*: conditions from the LP that weren't met.

The Licença de Operação (LO) — the operating licence. Authorises operation. *Your opening*: unmet conditions and monitoring failures.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — often a consortium with state banks or public money, which sets political and reputational exposure. **What it still needs** — which licence stage it's at,

whether consultation has happened, whether the financing is closed: whatever's missing is the soft spot, and a project stuck at LP is far more vulnerable than one already built. **Who's paying** — public development banks and international lenders with their own environmental and human-rights rules and grievance mechanisms.

Who's Supposed to Be Watching

Each is an ally or an arena. The **licensing agency** (IBAMA or the state body) runs the process and can be pressed, publicly, to enforce it. **FUNAI** and the traditional-peoples authorities defend Indigenous and traditional land. The **Ministério Público** — federal (MPF) and state — can investigate and sue. The **courts**, including the federal courts, review the licensing and the constitutional questions. The **Defensoria Pública** gives free legal help. The **Tribunal de Contas** (audit court) examines public money. And Brazil's **strong environmental and Indigenous movements**, its universities, and a free press are the forces that carry a local fight to the nation and the world — as Tapajós was carried.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether Indigenous or traditional rights are engaged, whether the licensing or consultation is genuinely flawed, whether a prosecutor takes up the case, and how strategic the government considers the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Speak at the public hearing / object in licensing	15–35%	during LP	low	On record; conditions or a redo
Complaint to the Ministério Público (representação)	30–55%	months–yr	low	Investigation; possible injunction
Ação civil pública (by the MP)	35–60%	1–4 yr	low	Injunction halting the project
Ação popular (citizen suit)	20–45%	1–4 yr	low–mod	Harmful act annulled
Indigenous land / prior consultation	30–55%	varies	low–mod	Shield asserted; project stalled or stopped
Movement + national/international attention	30–55%	1–4 yr	low–mod	Political cost; project reconsidered
Everything together (Indigenous rights, world watching)	40–65%	1–4 yr	low–mod	Stopped, stalled, delayed, changed
Everything together (strategic project, no rights trigger)	20–45%	1–4 yr	mod	Delayed, conditioned, exposed

The lever that moves the needle most is the **Ministério Público** — the prosecutor who sues for you — reinforced by the **constitutional shield around Indigenous land**, the **prior-consultation** right, and public attention. Tapajós shows the ceiling (a mega-dam refused). Belo Monte shows the floor (dozens of prosecutors' wins undone by the *suspensão de segurança*). Most fights sit between, and honest wins

include delay, conditions, and exposure as much as a clean stop.

On cost and safety: complaining to a prosecutor, speaking at a hearing, and organising cost little, and the Ministério Público and the Defensoria Pública work for free. But this is dangerous country for defenders — so document safely, protect the vulnerable, never expose individuals unnecessarily, and route risk through institutions and the prosecutor rather than confronting powerful interests alone.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this licence, this flaw, this right — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, the public banks or lenders funding it.

2. Where is it, and what does it touch? Get the boundaries and lay them over what's protected — Indigenous land, a quilombo, a conservation unit, a river, traditional-community land. **Indigenous and traditional land is Brazil's strongest shield**, so this map is your most important document.

3. What stage is it at, and what's the next deadline? Which licence — is the LP process open, the EIA/RIMA published, the public hearing scheduled? These openings are time-bound, and the LP stage is the one to reach.

4. What does it still need that it lacks? A licence not yet granted, consultation not yet done, land recognition still pending, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already stands with you? The affected communities, the Indigenous or traditional peoples, local groups, a sympathetic prosecutor, the national movement. You're rarely alone.

What this looks like in real life. A community learns a dam is planned that will flood land used by an Indigenous people whose territory isn't yet officially recognised. The five questions yield: a consortium with public-bank money behind it; a site on unrecognised Indigenous land (the shield, if recognition can be won); an LP process with the EIA/RIMA due and a hearing coming; a project that still needs its licence and land clearance; and a coalition of the affected people, allied NGOs, and a federal prosecutor who can be asked to act. That's the Tapajós pattern — and it's the position from which Tapajós was won.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA and RIMA (public at least 45 days before the hearing), the licence terms and conditions, the technical opinions, the consultation record, the land-recognition file. IBAMA and the state agencies publish much of it; demand the rest. Then read the EIA hard for flaws — an understated impact, an ignored alternative, cumulative effects skipped, a consultation that never genuinely happened.

Layer two: the ground truth. Dated, located photographs and video of the land, the river, the forest — baseline images before any damage most of all — and, carefully and with consent, the testimony of affected families and communities. Protect people; never expose anyone who could be endangered.

Layer three: the map of rights. Lay the project over Indigenous and quilombola land, conservation units, and traditional territories, so each constitutional and legal shield is visible. Walking into a prosecutor's office or a hearing with the EIA, the conditions, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA/RIMA, the licence and conditions, the technical opinions, the consultation record** — from IBAMA or the state agency (much is published); demand the rest.
- **Land-recognition and Indigenous/quilombola documents** — from FUNAI and the traditional-peoples authorities.
- **Ownership and financing** — company records, and public-bank and lender documents.
- **The rights map** — Indigenous land, quilombos, conservation units, and traditional territories laid over the site.
- **Dated site evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power. Build your coalition in four moves — and in Brazil, safely.

Start with a tight core. The families most affected, the people who know the land and river, a few trusted organisers, and respected local and community leaders.

Widen the circle. Pull in the affected communities, the neighbouring settlements, the local groups. Hold meetings where people can see the evidence — the map of the dam over their land, the EIA, the conditions — so the community speaks with one voice at the hearing, to the prosecutor, and in the press.

Follow the leadership of affected peoples. Where Indigenous, quilombola, or traditional peoples are affected, the strongest rights in the fight are theirs — the constitutional shield and the right to prior consultation. Build the campaign around **supporting** that leadership, at their direction, never speaking over it.

Bring in the allies and experts — and a prosecutor — early. Reach the environmental and Indigenous-rights NGOs, the universities, the public-interest lawyers, and — crucially — a **prosecutor at the Ministério Público**, who can investigate and sue. The **Defensoria Pública** gives free legal help. Bring them in as partners and hand them your documents.

Build to last, and safely. These fights run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and — in Brazil, real — physical risks. Take threats seriously, protect defenders, and route danger through institutions and the prosecutor rather than confronting the powerful alone.

STEP 4: LEGAL CHALLENGES, THE PROSECUTOR & INDIGENOUS RIGHTS

Law is arguably Brazil's sharpest lever, because of one institution most countries lack and one shield the Constitution itself provides.

The Ministério Público — the Prosecutor Who Sues for You

The single most distinctive move in Brazil is to take a **representação** — a written complaint — to the **Ministério Público**: the federal prosecutors (**MPF**) for federal, Indigenous, or interstate matters, the state prosecutors (**MP**) otherwise. Most have an *ouvidoria* or an online form to receive complaints. A prosecutor can open an investigation (*inquérito civil*) and, if the case warrants, bring an **ação civil pública** — a collective lawsuit that can win an **injunction halting the project**. This is how communities across Brazil have stopped or stalled dams, mines, and roads: not by out-lawyering a corporation, but by convincing an independent, publicly funded prosecutor to take the fight. Bring the prosecutor a clear, documented case, and you may gain the most powerful ally in the system.

The Constitutional Shield Around Indigenous and Traditional Land

The Constitution protects Indigenous land fiercely: it can be flooded or exploited only in the most exceptional circumstances, and only with the authorisation of **Congress** — a barrier that, once the land is recognised, cannot be wished away (that's what killed Tapajós). Recognition runs through **FUNAI**'s demarcation process, which is slow and contested — but even pending recognition, and self-demarcation, can become powerful facts in the fight. Quilombola and other traditional territories carry their own protections.

Prior Consultation, and the Citizen Suit

Under **ILO Convention 169**, Indigenous and traditional peoples have a right to **free, prior, and informed consultation (CPLI)** before a project affecting them proceeds — a right courts and prosecutors increasingly enforce, and whose absence can suspend a licence. And any citizen can bring an **ação popular** to annul an official act that harms the environment — a direct route to court that doesn't depend on a prosecutor.

The Honest Limits

Straight talk: the government's **suspensão de segurança** can lift even a well-founded injunction on economic grounds — the mechanism that built Belo Monte over dozens of prosecutors' wins. Licensing approves most projects. Demarcation is slow and fiercely resisted. And the physical danger to defenders is real. So use the strong tools — the prosecutor, the constitutional shield, prior consultation, the courts — but pair them with the movement and national and international attention, protect your people, and count delay, conditions, and exposure as real wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a complaint to a prosecutor. Not "the project is bad" but *"the EIA ignored the impact on this Indigenous land and the consultation the law requires never happened — here is the evidence; please investigate and act."*

A right becomes a constitutional shield. *"This is Indigenous/quilombola land; it cannot lawfully be flooded or taken without the process the Constitution requires — which has not been followed."*

A skipped step becomes a licensing flaw. *"There was no genuine public hearing, no free and prior consultation — the licence is unlawful."*

The harm becomes a national and global story. *"A people's ancestral land, and a living stretch of the Amazon, are to be drowned for a project they were never truly consulted about."*

Match it to the venue: the flaws and the complaint to the prosecutor; the illegality to the courts; the shield to FUNAI and the courts; the story to the press, the movement, and international allies.

STEP 5: MEDIA STRATEGY

In Brazil, national and international attention is a real lever — Tapajós became a global cause, and that reach protected the people fighting it and pressured the institutions to act. A free press and strong movements mean the media front is central, and it also shields defenders: a watched community is harder to threaten.

Lead with people and place, not procedure. Not "the licensing was flawed" but "the river and forest a people have lived with for generations, and the land the Constitution protects, are to be drowned for a dam they were never truly asked about." Use your strongest material: dated photographs, the map of the project over the land, and — carefully, at the community's direction — human testimony.

Work several audiences at once. Local and national press build political pressure; the environmental and Indigenous movements amplify; international media and human-rights networks reach the lenders and the world (decisive for a publicly financed project). Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — in dangerous country, weigh every publication, shield the vulnerable, and let affected communities decide what is said and by whom.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone who could be endangered.

8A — Requesting the licensing documents (to IBAMA or the state agency).

Subject: Request for licensing documents — [project].

"We, residents of [place], request the EIA and RIMA, the licence and its conditions, the technical opinions, and the public-hearing and consultation records for [project] at [location]. As affected people we are entitled to these. [Contact.]"

8B — Submission at the public hearing / in licensing.

Subject: Objection in the licensing of [project].

"We, residents of [place], object to the licensing of [project]: [the EIA fails to assess the impact on / the consultation of / the flooding of] [specifics]. We ask that these be recorded and addressed and the licence refused or a proper study required. [Attach evidence.]"

8C — Complaint to the Ministério Público (representação).

Subject: Representação — environmental and community harm from [project].

"We bring to the Ministério Público the following facts regarding [project] at [location]: [the licensing flaws / the absence of prior consultation / the threat to Indigenous or traditional land]. We ask that you investigate

and, if warranted, act to protect the environment and the affected people. [Attach evidence and contact.]"

8D — Asserting prior consultation / Indigenous or traditional rights (with and at the direction of the affected people).

Subject: Free, prior, and informed consultation — [project] and [people/community].

"[Project] affects the land and rights of [the people/community], who have a right to free, prior, and informed consultation under ILO Convention 169. That consultation has not taken place. We ask that the process be halted until it does, in the manner the community determines. [Contact.]"

8E — To the Defensoria Pública or a public-interest lawyer.

Subject: Request for legal help — [project] at [location].

"Our community faces [project], which threatens [our land / a river / Indigenous or traditional territory]. We've gathered [the EIA, the licence, photographs, testimony] and believe there are grounds to challenge it. We ask for your legal help, and we're ready to work as partners. [Contact and evidence summary.]"

8F — To a public bank or lender.

Subject: Environmental and human-rights risk in financing [project].

"We understand your institution may be financing [project] at [location], which [threatens Indigenous or traditional land / lacks the required consultation / faces active legal challenge]. We ask you to weigh this against your own environmental and human-rights standards, and we can provide documentation. [Contact.]"

8G — Letter to the press.

Subject: [Community/people] moves to protect [river / forest / land] from [project].

"For generations the people of [place] have lived from [the river / the forest / the land] at [location]. Now [project], by [company], threatens to [flood / clear / take] it — and they were never truly consulted. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our land — here's how.

"[Project] threatens [our land / this river / our territory]. Communities in Brazil have stopped mega-dams by asserting their rights, reaching a prosecutor, and carrying their story to the country and the world. With the Ministério Público, the courts, and the movement behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the shield.** Lay it over Indigenous, quilombola, and traditional land and conservation units. That land is your strongest lever.
2. **Find the licence stage and the public hearing — and the 45-day window.** Get the EIA/RIMA, read it, and speak at the hearing (8B). The LP stage is the one to reach.
3. **Take a complaint to the Ministério Público (8C).** This is the move that most changes the fight — a prosecutor can investigate and sue for you.
4. **Assert prior consultation and the constitutional shield, at the community's direction (8D).** Their absence can suspend a licence.
5. **Get free legal help from the Defensoria Pública or a public-interest lawyer (8E).**
6. **Go public and find your movement (8G) — safely.** National and international attention pressures the institutions and protects your people.

Even lean, those six use your rights, reach a prosecutor, and start a coalition — the ground everything else builds on.

WHEN THE SYSTEM IS TILTED

Brazil's tools are real, but the field is often tilted, and you must plan for it.

When the government wants a strategic project. The **suspensão de segurança** can lift even a strong injunction on economic grounds — the mechanism that built Belo Monte over dozens of court wins. Don't fold: keep the pressure on every front — the prosecutor, the constitutional shield, the movement, the international attention — and make the government's overriding of the law a public and political cost. Where a clean stop isn't reachable, delay, conditions, and exposure still matter, and a project stalled for years often collapses under its own costs.

When licensing is a rubber stamp. Agencies approve most projects and can be pressured by the government of the day. The answer is the prosecutor and the courts, and a documented record of every flaw.

When consultation is faked. A staged "consultation" that doesn't meet the free-and-prior standard is not a reason to disengage but a defect that can suspend a licence — document exactly how it failed.

When defenders are in danger. This is the hardest tilt, and the most important. Brazil is one of the deadliest countries for land and environmental defenders. Take every threat seriously, work through institutions and the prosecutor, protect the vulnerable, never expose individuals unnecessarily, and reach for national and international attention, which is itself a form of protection.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Brazil has serious, well-documented problems with the capture of decisions by economic and political interests, so this matters.

How to spot it. Licences granted against the technical opinion; a process rushed to suit a project; revolving doors between industry, the agencies, and politics; land or contracts steered to the connected; agencies suddenly pressured to reverse course; opaque, inflated public spending.

Who's supposed to guard against it. The **Ministério Público** and the federal police investigate corruption and environmental crime. The **Tribunal de Contas** (audit court) examines public money and public-private deals. The **courts** can annul a tainted licence. And Brazil's **investigative press** has repeatedly exposed captured megaprojects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Ministério Público, the audit court, and trusted journalists rather than confronting powerful interests alone. Protect insiders and witnesses. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the rights and the licence stage aims it; organising builds the muscle; the prosecutor and the courts press the case; the movement and the media raise the cost and protect your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any Indigenous or traditional land; find the licence stage, the EIA/RIMA, and the hearing; gather the documents and read the study; take a complaint to the Ministério Público; assert consultation at the community's direction; build your core group — safely.

In the thick of it (months–years): support the prosecutor's *ação civil pública* and any citizen suit; press the constitutional shield and the demarcation; deepen the coalition and the expert critique; open the media and lender fronts.

The long haul (years): carry the case through the appeals and the *suspensão* fights; keep the movement and the national and international attention alive; hold the line for a licence refused, real conditions, delay, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Brazil can be done — a people marked out their own territory and forced a chain of institutions to kill an eight-thousand-megawatt dam — and the same story is honest about the price: years of pressure, a constitutional shield that had to be fought for, and a government whose *suspensão de segurança* can undo court wins. Hold both. Brazil's tools are real and, in one respect, unusually strong: an independent Ministério Público that sues on a community's behalf; a Constitution that shields Indigenous land; a right to free, prior, and informed consultation; a citizen suit; and strong movements and a free press. And the constraints are real: licensing that approves most projects, slow and contested demarcation, the government's power to override injunctions, and genuine danger to defenders.

Here's the discipline that wins. Read the EIA for flaws and pry loose the record. Speak at the hearing and object in the licensing. Take a documented complaint to the Ministério Público — the prosecutor who can sue for you. Assert the constitutional shield and prior consultation, at the affected people's direction. Carry the story to the nation and the world. Brace for a long, hard fight, protect your people above all, and count a licence refused or conditioned, delay, and exposure as wins alongside a clean stop. That's what the Mundurucu and their allies did — a people, a prosecutor, a movement, and the world's attention together — and they stopped a mega-dam. So can you.